

Tentative Rulings for July 16, 2026 Department 4

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 4 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 533 0910**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2203305	DOE vs ALVORD UNIFIED SCHOOL DISTRICT	MOTION TO COMPEL DEFENDANT ALVORD UNIFIED SCHOOL DISTRICT TO COMPLY WITH PLAINTIFF'S DEMAND TO PERMIT ENTRY INTO LAND AND TO PRODUCE TANGIBLE THINGS FOR INSPECTION, PHOTOGRAPHING

Tentative Ruling:

Hearing required.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2402663	BART MUNOZ vs ARELLANO	MOTION TO BE RELIEVED AS COUNSEL FOR GONZALO ARMANDO BART MUNOZ

Tentative Ruling:

GRANT

3.

CASE #	CASE NAME	HEARING NAME
CVRI2502710	VILLANUEVA vs DEPARTMENT OF TRANSPORTATION	MOTION TO VACATE DISMISSAL

Tentative Ruling:

GRANT

The dismissal of 1/21/2026 of the California Department of Transportation is set aside. Matter is set for a Case Management Conference on September 22, 2026, at 8:30am, D-4. Plaintiff to re-serve the Department of Transportation with the Complaint, and to file a new proof of service with the court by September 4, 2026.

Plaintiff to give notice.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2504898	ZAKI vs TADROS	MOTION TO DISQUALIFY ORRICK, HERRINGTON & SUTCLIFFE LLP AS COUNSEL FOR DEFENDANT MICHAEL TADROS, REQUEST FOR DISGORGEMENT OF ATTORNEYS' FEES AND PROHIBITION ON USE OF CORPORATE FUNDS FOR DEFENSE OF MICHAEL TADROS

Tentative Ruling:

GRANT the motion to disqualify.

Plaintiff Fady Zaki ("Zaki"), a 50% shareholder in Plaintiff corporations, Sky Pharma Corp., 3E Pharmacy Corp., and 3E Pharmacy, Inc. (collectively "the Companies"), brings this action both individually and derivatively against his co-owner, Defendant Michael Tadros ("Tadros"), alleging misappropriation of corporate funds. Zaki, individually and derivatively on behalf of the Companies, now seeks to disqualify Orrick, Herrington and Sutcliffe LLP ("Orrick") from representing Tadros, arguing that there is an unwaivable conflict arising from its successive and concurrent representation of the derivative plaintiffs and the nominal defendants (the Companies). Zaki states that Orrick has represented both Tadros and the Companies since 2020, when Tadros retained the firm to respond to allegations from Zaki of corporate mismanagement. In January of 2025, Orrick responded to Zaki's pre-litigation settlement demand on Tadros's behalf, prepared a tolling agreement binding both parties, and accepted service for both Tadros and the Companies. This derivative litigation followed, with the Companies being named as nominal Defendants in the action.

The facts of Orrick's representation are as follows; Tadros was the sole director and CEO of the Companies throughout Orrick's representation. Tadros was Orrick's sole contact person at the Companies during the entire five-year period of representation. Tadros retained Orrick in 2020 to represent both himself and the Companies he controlled in response to Zaki's adverse demands. The Companies are closely-held Delaware limited liability companies in which Zaki and Tedros each hold a 50% interest. The Companies' operations were under Tadros's control as sole director and CEO. Any confidential information Orrick obtained came from Tadros or was information to which Tadros had full access to by virtue of his position.

California courts have uniformly held that an attorney who previously represented both a closely-held entity and its insiders may continue to represent the insiders in a derivative action, despite the substantial relationship between the prior and current representations. (*See, Forrest v. Baeza* (1997) 58 Cal.App.4th 65; *Blue Water Sunset, LLC v. Markowitz* (2011) 192 Cal.App.4th 477; *Ontiveros v. Constable* (2016) 245 Cal.App.4th 686) Hence, the continued representation of insiders is permitted. Zaki, however, argues that Orrick has engaged in per se disqualifying *concurrent* representation by simultaneously representing the Companies and Tadros during the

pre-litigation phase and in the instant action. The court agrees. Where an attorney simultaneously represents clients with adverse interest in the same litigation, disqualification is automatic. (See, *M'Guinness v. Johnson* (2015) 243 Cal.App.4th 602.) When Orrick undertook to represent Tadros in this action, it appeared adverse to its own clients, the Companies. There is no evidence that Orrick's representation of the Companies terminated before it undertook the representation of Tadros in the litigation. Orrick's declaration states that it "took no action in this case on behalf of the companies" other than obtaining an extension, and that it "represents only Tadros in this derivative case." Notably absent from this carefully worded statement is any affirmative representation that Orrick's attorney-client relationship with the Companies ended entirely, or when and how any such termination occurred. The evidence supports the opposite conclusion. The Companies made payments to Orrick through at least November 2025, three months after this action was filed. The memo line on at least one check states "Fadi Zaki," suggesting payment related to this dispute. Here, Orrick continued to control and limit Zaki's access to the Companies' records for over five years, Orrick negotiated a tolling agreement on behalf of both the Companies and Tadros that tolled the Companies' derivative claims against Tadros, and Orrick produced the Companies' records to Zaki while simultaneously representing Tadros. Where, as here, the engagement was open-ended, the firm continued invoicing the corporation, and post-dispute conduct suggests the firm continued to act as corporate counsel, the Court cannot make an affirmative finding that Orrick's representation of the Companies terminated before Orrick undertook Tadros's defense. The continued invoicing, payment history, and control of the corporate records all suggest otherwise. Under these circumstances, *M'Guinness* controls.

Zaki's request to prohibit the corporate funding of Tadros's defense is denied, as Corporations Code § 317 allows for the advancement of expenses and Zaki offers no case law supporting prejudgment prohibition based on allegations alone. Zaki's request for disgorgement of fees already paid is also denied, as this remedy is unavailable to Zaki at this time. Disgorgement requires a finding that the fees were improperly authorized or that Tadros acted wrongfully. No such findings have been made, as that determination necessarily follows adjudication on the merits.